

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

- - - - -x

CRYSTAL BEANS, Index No.

DOP:

SUMMONS

Plaintiff,

Plaintiff
designates
QUEENS COUNTY
as the place of
trial

- against -

NYPD Police Officer "JANE" VARLACK, The basis of venue
the first name unknown to plaintiff is Plaintiff's
and fictitious, Individually and in her Domicile
Official Capacity; and THE CITY
OF NEW YORK, Plaintiff resides
at 114 AstoriaBlvd

Defendants.

Astoria, NY

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To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in
this action and to serve a copy of your answer, or, if
the complaint is not served with this summons, to serve
a notice of appearance, on the Plaintiff's Attorney(s)
within 20 days after the service of this summons,
exclusive of the day of service (or within 30 days after
the service is complete if this summons is not
personally delivered to you within the State of New
York); and in case of your failure to appear or answer,
judgment will be taken against you by default for the
relief demanded herein.

Dated: Mount Kisco, NY
September 15, 2023

**LAW OFFICES OF DANIEL W.
ISAACS, PLLC**

/s/ Daniel W. Isaacs

Defendants' Addresses: By:

Daniel W .Isaacs, Esq.
Attorneys for Plaintiff
122 Cross River Road
Mount Kisco, New York 10549
(646) 438-2100

See Service Rider

SERVICE RIDER

The City of New York
One Centre Street
New York, New York 10007

Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

NYPD Police Officer "Jane" Varlack, the First Name
Unknown to Plaintiff and Fictitious
One Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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CRYSTAL BEANS,

Index No.

VERIFIED COMPLAINT

Plaintiff,

- against -

NYPD Police Officer "JANE" VARLACK,
the first name unknown to plaintiff
and fictitious, Individually and in her
Official Capacity; and THE CITY
OF NEW YORK,

Defendants.

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Plaintiff, Crystal Beans, by her attorneys, The Law
Offices of Daniel W. Isaacs, PLLC, as and for a Verified
Complaint, respectfully sets forth and alleges as follows:

PRELIMINARY STATEMENT

FIRST: This is an action brought to vindicate
Plaintiff's rights under New York State law and for violations
of her Constitutional rights secured under color of statute,
ordinance, regulation, custom, and/or secured to the plaintiff
by the Fourt, Fifth, Sixth and Fourteenth Amendments to the
Constitution of the United States, through 42 U.S.C. § 1983,
1985 and 1986.

SECOND: That the State law claims in this action include
False Arrest, Fabrication of Evidence, Assault, Battery, and
Negligence.

THIRD: That the Federal claims in this action include
Violation of the Right to a Fair Trial and Fabrication of

Evidence, False Arrest, and, violations of the civil and constitutional rights of the plaintiff due to the deliberate indifference of the City of New York to the Constitutional rights of the Plaintiff by failures of training, supervision and retention of Police Officers; there is a *Monell* Claim based upon the policy and/or custom of the City of New York regarding the failure of training, supervision and discipline of police officers which resulted in violations of the civil and constitutional rights of the plaintiff.

FOURTH: That the plaintiff, Crystal Beans ("Beans"), was subjected to false arrest in violation of the 4th Amendment, by the individually named officer who arrested her; evidence was fabricated against the plaintiff by the individually named officer in violation of both New York State tort law and in violation of her Due Process rights to a fair trial under the 6th and 14th Amendments of the United States Constitution and enforceable pursuant to 42 U.S.C. §1983.

FIFTH: The individually sued officer defendant engaged in unlawful conduct, including submitting false reports in violation of both New York civil laws that protect the community from unlawful police conduct and Constitutional rights enforced via the provisions of 42 U.S.C. §1983 raised in this Verified Complaint.

SIXTH: That the City of New York is liable under *respondeat superior* for the false arrest and other violations of New York State law; the City of New York is further liable

for failing to properly train Police Officers, for failure to discipline police officers for presenting false information.

SEVENTH: That the City of New York fails to prosecute or otherwise discipline the police officers who submit false information and then swear or otherwise affirm to their truth and instead relies upon internal police department processes that almost never result in prosecution for tendering false written statements.

EIGHTH: Under the Federal causes of action, Beans seeks declaratory relief pursuant to 28 U.S.C. §2201, compensatory and punitive damages for violation of plaintiff's civil rights pursuant to 42 U.S.C. § 1985 and 1986 and an award of costs, disbursements and attorney fees under 42 U.S.C. §1988.

NINTH: For the New York State causes of action, Beans seeks compensation in an amount in excess of the jurisdictional limits of all lower courts.

Notice of Claim and Conditions Precedent

TENTH: That on December 8, 2022, plaintiff caused a Notice of Claim to be served upon defendant THE CITY OF NEW YORK and the New York City Police Department.

ELEVENTH: That the Notice of Claims were delivered to the person designated by law as a person to whom such claims may be presented and served.

TWELFTH: That the Notice of Claim were in writing, sworn to by or on behalf of the Plaintiff, and set forth the name and post office address of the Plaintiff and Plaintiff's

attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damages and injuries to have been sustained.

THIRTEENTH: That the City of New York failed to request a hearing pursuant to GML § 50-h within 30 days of service of the Notice of Claim and has waived its right to hearing under GML §50-h.

FOURTEENTH: That defendant City of New York has failed and refused to pay and/or adjust the claim within the statutory period of time.

FIFTEENTH: That this action has been commenced within one year and ninety days of the occurrences upon which the claims are based.

SIXTEENTH: That Plaintiff has complied with all conditions precedent applicable to the instant action.

SEVENTEENTH: That this action is commenced within one year of the accrual of the cause of action brought pursuant to 42 U.S.C. §1985 and 1986.

PARTIES

EIGHTEENTH: That Beans was at all times relevant to this action a resident of the County of Queens in the City and State of New York.

NINETEENTH: That defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York and was the employer of the defendant officer; that the actions of the defendant officer complained

of herein was done as part of the custom, practice, usage, regulation, policy and/or at the direction of defendant CITY OF NEW YORK.

TWENTIETH: That all times hereinafter mentioned defendant CITY OF NEW YORK employed the individual New York City Police Officer "Jane" Varlack, the first name unknown to plaintiff and fictitious.

TWENTY-FIRST: That at all times hereinafter mentioned the individual defendant officer was acting under the color of law in their official capacity and their acts were performed under color of state law.

TWENTY-SECOND: That all times hereinafter mentioned the individual defendant was an agent, servant and/or employee of defendant CITY OF NEW YORK.

TWENTY-THIRD: That the actions of the individual defendant was taken in the course of their duties and was incidental to their otherwise lawful functions as agents, servants and/or employees of defendant CITY OF NEW YORK.

FACTS

TWENTY-FOURTH: That on September 15, 2022, at approximately 10:00 a.m., plaintiff Beans was sitting in a parked car located on 28th Street between 37th and 38th Avenue in the County of Queens, City and State of New York.

TWENTY-FIFTH: That the vehicle, which Beans had been driving, had mechanical difficulties, when two New York City Police Officers in a marked patrol car pulled up to the

passenger side and said to turn the car on and move it up.

Seated in the passenger seat was the vehicle's owner, Shante Harrison.

TWENTY-SIXTH: Plaintiff and Ms. Harrison were waiting for Plaintiff's boyfriend, who had gone to secure a tow truck.

TWENTY-SEVENTH: Plaintiff Beans asked why she was being pulled over and the Police Officer repeated herself to pull the car up so Beans complied by turning the car on and moving up.

TWENTY-EIGHTH: Defendant NYPD Police Officer "Jane" Varlack, whose first name is currently unknown, came to Plaintiff's side and her partner walked to Ms. Harrison's side, asking for the car's registration and insurance. Ms. Harrison provided the requested paperwork, and Plaintiff Beans provided her driver's license. The other Police Officer then returned to discuss with Ms. Harrison an issue regarding the vehicle's insurance and/or registration.

TWENTY-NINTH: That the Police Officer then walked back to the patrol car. After waiting approximately thirty minutes Plaintiff Beans approached the police car and asked whether any tickets were being issued. Defendant Police Officer "Jane" Varlack responded in a hostile manner for Plaintiff Beans to return to her car. Before Plaintiff Beans could respond defendant Police Officer "Jane" Varlack called for backup and placed Plaintiff Beans under arrest, and handcuffed her without reading Plaintiff her Miranda rights.

THIRTIETH: That without warning defendant Police Office "Jane" Varlack also placed her hands upon Plaintiff's breasts without permission causing Plaintiff severe anxiety and shock.

THIRTY-FIRST: That Police Officers responding to the backup call arrived shortly thereafter and placed Plaintiff Beans in the back of their patrol car. When she asked why she was being locked up they responded by telling her to ask her arresting officer, defendant Police Officer "Jane" Varlack.

THIRTY-SECOND: Plaintiff was then transported to the 114 precinct, arriving at approximately at 10:45 a.m. At approximately 1:00 p.m. a police field intelligence officer took Plaintiff out of her cell to speak with her because she lived in a high-crime housing project, the Ravenwoods Housing Project.

THIRTY-THIRD: Plaintiff asked what she was charged with, and the officer went to inquire. She subsequently returned, stating that she was charged with reckless driving, notwithstanding the fact that Plaintiff was parked at the time.

THIRTY-FOURTH: That at approximately 6:45 p.m. Ms. Harrison was released from custody with several tickets and at approximately 9:15 p.m. Plaintiff Beans was taken to central booking in Kew Gardens, where she spent the night.

THIRTY-FIFTH: That at approximately 3:45 p.m. the next day Plaintiff saw a correction officer, who asked why she was still there. Plaintiff responded that she did not know, and

the corrections officer then returned, stating that her papers were "messed up." The corrections officer then returned with a second corrections officer, who then escorted Plaintiff out of the building without going before the Court.

THIRTY-SIXTH: That there was no probable cause to arrest or commence criminal proceedings against Plaintiff BEANS.

THIRTY-SEVENTH: That defendant CITY of NEW YORK failed to properly train its police officers, failed to discipline said officers, and, failed to terminate or remove from public contact police officers who it knew, or should have known, were not fit to be police officers; and, that this is part of a long standing policy by the CITY OF NEW YORK.

THIRTY-EIGHTH: That as a result of the foregoing the injuries suffered by plaintiff included serious injury, humiliation, embarrassment, anxiety and pain, loss of freedom and loss to reputation; and, violation of her rights under the New York Constitution and civil rights laws of the City and State of New York.

THIRTY-NINTH: That Defendant knew or should have known that there was no lawful basis for seizing the person of the plaintiff and the handcuffing and otherwise depriving the plaintiff of her rights to due process and fair trial as protected by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

FORTIETH: That the unlawful arrest and use of excessive force on the plaintiff violated her rights under the 4th, 5th,

6th and 14th Amendments to the United States Constitution.

FORTY-FIRST: That Defendants' actions were undertaken under color of state law and would have existed but for said defendants using their official power.

FORTY-SECOND: That Defendant CITY OF NEW YORK has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of Plaintiff and others similarly situated.

FORTY-THIRD: That the afore-described acts of the Defendants were intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

**FIRST CAUSE OF ACTION
FALSE ARREST**

FORTY-FOURTH: That plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "FIRST" through "FORTY-THIRD" of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

FORTY-FIFTH: That on September 15, 2022, at approximately 10:00 a.m., while plaintiff Beans was sitting in a parked car located on 28th Street between 37th and 38th Avenue in the County of Queens, City and State of New York, she was unlawfully detained by police officers who were employees, agents and/or servants of the defendant CITY OF NEW YORK.

FORTY-SIXTH: That on September 15, 2022, at approximately 10:00 a.m., while plaintiff Beans was sitting in a parked car located on 28th Street between 37th and 38th Avenue in the County of Queens, City and State of New York, and at other times and locations, during the period she was in police custody, in the County of Queens, City and State of New York, she was unlawfully subjected to an unlawful search and seizure by police officers who were employees, agents and/or servants of Defendant CITY OF NEW YORK.

FORTY-SEVENTH: That said unlawful detention and search and seizure was without justification and beyond the boundaries of reasonableness.

FORTY-EIGHTH: That Defendant CITY OF NEW YORK, by and through its agents, servants and/or employees, acted in bad faith and without justification in committing the aforesaid detention, search and unlawful imprisonment of Plaintiff.

FORTY-NINTH: That there was no reasonable cause to subject Plaintiff to arrest.

FIFTIETH: That at the time of Plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

FIFTY-FIRST: That on the aforesaid date and place, the defendant, CITY OF NEW YORK, its agents, servants and/or employees, intentionally confined Plaintiff BEANS and/or

restricted BEAN's freedom of movement.

FIFTY-SECOND: That Plaintiff BEANS was conscious of said confinement and/or restriction.

FIFTY-THIRD: That Plaintiff BEANS did not consent tyo said confinement and/or restriction.

FIFTY-FOURTH: That the confinement and/or constriction was not otherwise privileged.

FIFTY-FITH: That by the actions described above, the defendant, CITY OF NEW YORK, caused Plaintiff BEANS to be falsely imprisoned, falsely arrested, without probable cause, illegally and without an arrest warrant.

FIFTY-SIXTH: That said false imprisonment caused Plaintiff to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages and damage to her reputation.

FIFTY-SEVENTH: That as a result of the foregoing, Plaintiff BEANS demands judgment against Defendants that exceeds the jurisdictional limits of all lower courts.

**SECOND CAUSE OF ACTION
ASSAULT AND BATTERY**

FIFTY-EIGHTH: That plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "FIRST" through "FIFTY-SEVENTH" of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

FIFTY-NINTH: That on September 15, 2022, at

approximately 10:00 a.m., while plaintiff Beans was lawfully sitting in a parked car located on 28th Street between 37th and 38th Avenue in the County of Queens, City and State of New York, she was assaulted and battered by policer "Jane" Varlack, whose first name is unknown to plaintiff and fictitious, and who was employed by defendant CITY OF NEW YORK without provocation.

SIXTIETH: That as a result of the above mentioned assault and battery Plaintiff BEANS was physically and emotionally damaged and injured.

SIXTY-FIRST: That as a result of the foregoing, Plaintiff BEANS demands judgment against Defendants that exceeds the jurisdictional limits of all lower courts.

**THIRD CAUSE OF ACTION
42 U.S.C. §1983
AS AGAINST DEFENDANT VARLACK**

SIXTY-SECOND: That plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "FIRST" through "SIXTY-FIRST" of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

SIXTY-THIRD: That the conduct of the individually named defendant officer as described herein, amounted to false arrest, excessive use of force, failure to intervene, fabrication of evidence and violation of due process rights.

SIXTY-FOURTH: That such conduct violated Plaintiff's rights under 42 U.S.C. §1983 and the Fourth, Fifth, Sixth and

Fourteenth Amendments to the United States Constitution.

SIXTY-FIFTH: That Plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

**FOURTH CAUSE OF ACTION
42 U.S.C. §1983
AS AGAINST DEFENDANT CITY OF NEW YORK**

SIXTY-SIXTH: That plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "FIRST" through "SIXTY-FIFTH" of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

SIXTY-SEVENTH: That Defendant CITY OF NEW YORK, acting through the New York City Police Department ("NYPD"), had actual and/or *de facto* policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligations to effect an arrest only when probable cause exists for such arrest.

SIXTY-EIGHTH: That defendant CITY OF NEW YORK, acting through the aforesaid NYPD, had actual and/or *de facto* policies, practices, customs and/or usages of wrongfully arresting, assaulting and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups

such as Plaintiff, who is Black, on the pretext that they were involved in some crime or offense.

SIXTY-NINTH: That the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the City of New York in the state and federal courts.

SEVENTIETH: That defendant CITY OF NEW YORK maintained the above described policies, practices, customs and/or usages knowing fully well that the policies, practices, customs or usages led to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant CITY OF NEW YORK acted with deliberate indifference, and its failure was a direct and proximate cause of Plaintiff's injuries as described herein.

SEVENTY-FIRST: That by these actions Defendants have deprived the Plaintiff of rights secured by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as secured through 42 U.S.C. §1983.

**FIFTH CAUSE OF ACTION
42 U.S.C. §1983 and 1986**

SEVENTY-SECOND: That plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "FIRST" through "SEVENTY-FIRST" of the within Complaint, with the same force and effect as though each were more fully set

forth at length herein.

SEVENTY-THIRD: That in an effort to fine fault to use against Plaintiff defendant officer conspired to deprive Plaintiff of her Constitutional rights secured by U.S.C. §1983 and by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and took numerous overt steps in furtherance of such conspiracy as set forth above.

SEVENTY-FOURTH: In light of the foregoing therefore, defendant officer engaged in a conspiracy designed to deprive Plaintiff of her Constitutional and federal rights in violation of 42 U.S.C. § 1985.

SEVENTY-FIFTH: That as a direct and proximate result of the misconduct and abuse of authority detailed above, the Plaintiff sustained the damages hereinabove stated.

WHEREFORE, Plaintiff demands judgment against the Defendants in an amount commensurate with the damages suffered on the First, Second, Third, Fourth and Fifth Causes of Action together with the costs, disbursements and expenses of the within action; including attorney's fees, interest and punitive damages.

Dated: Mount Kisco, New York
September 15, 2023

Yours, etc.,

LAW OFFICES OF DANIEL W. ISAACS, PLLC

/s/ Daniel W. Isaacs

By: _____
DANIEL W. ISAACS, ESQ.
Attorneys for Plaintiff

122 Cross River Road
Mount Kisco, New York 10549
(646) 438-2100

VERIFICATION

I, Daniel W. Isaacs, Esq., am the Principle of The Law Offices of Daniel W. Isaacs, PLLC, attorneys for the plaintiffs in the within action, duly admitted to practice in the Courts of the State of New York, hereby affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the Civil Practice Laws & Rules of the State of New York:

That I have read the foregoing Complaint and know the contents thereof; that based on the information derived from the files maintained in my office, which is maintained in the normal course of business, and those facts and documents provided to me by Crystal Beans, and upon information and belief, and as to those matters, I believe them to be true.

The reason this affirmation is not made by the plaintiff is that the plaintiff resides in a county other than where the undersigned maintains his office for the practice of law.

Dated: Mount Kisco, New York
September 15, 2023

/s/ Daniel W. Isaacs

DANIEL W. ISAACS, ESQ.